

MESNARD FLOOR AMENDMENT
SENATE AMENDMENTS TO S.B. 1627
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[GREEN STRIKEOUT IN BRACKETS] indicates new text removed from statute or previously enacted session law.

[Green strikeout in brackets] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<Green strikeout in carets>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 13-3729, Arizona Revised Statutes, is amended to
3 read:

4 13-3729. Unlawful operation of model or unmanned aircraft;
5 classification; definitions

6 A. It is unlawful for a person to operate a model aircraft or a
7 civil unmanned aircraft if the operation:

8 1. Is prohibited by a federal law or regulation that governs
9 aeronautics, including federal aviation administration regulations.

10 2. Interferes with a law enforcement, firefighter or emergency
11 services operation.

12 B. It is unlawful for a person to operate or use an unmanned
13 aircraft or unmanned aircraft system to intentionally photograph or loiter
14 over or near a critical facility in the furtherance of any criminal
15 offense.

16 ~~[D.]~~ [C.] IT IS UNLAWFUL FOR A PERSON TO OPERATE OR USE AN
17 UNMANNED AIRCRAFT OR UNMANNED AIRCRAFT SYSTEM ~~[IF THE OPERATION]~~ [TO
18 INTENTIONALLY PHOTOGRAPH OR LOITER OVER AN AREA THAT] IS WITHIN ONE
19 HUNDRED FEET OF OR WITHIN ONE HUNDRED FEET ABOVE AN AREA THAT IS NOT ZONED
20 FOR RESIDENTIAL USE AND THAT IS USED TO PROVIDE INSTRUCTION TO STUDENTS IN
21 KINDERGARTEN PROGRAMS OR STUDENTS IN GRADES ONE THROUGH TWELVE UNLESS THE
22 PERSON HAS LEGAL AUTHORITY ~~[OR ADMINISTRATIVE OVERSIGHT]~~ OVER THE AREA OR
23 OBTAINS CONSENT FROM ANOTHER PERSON WITH LEGAL AUTHORITY ~~[OR~~
24 ~~ADMINISTRATIVE OVERSIGHT]~~ OVER THE AREA.

25 ~~[C.]~~ [D.] Except as authorized by law, a city, town or county may
26 not enact or adopt any ordinance, policy or rule that relates to the
27 ownership or operation of an unmanned aircraft or unmanned aircraft system
28 or otherwise engage in the regulation of the ownership or operation of an
29 unmanned aircraft or an unmanned aircraft system. Any ordinance, policy

1 or rule that violates this subsection, whether enacted or adopted by the
2 city, town or county before or after August 6, 2016, is void.

3 ~~D.~~ E. This section does not:

4 1. Apply to a person or entity that is authorized or allowed by the
5 federal aviation administration to operate or use an unmanned aircraft
6 system if the person's or entity's operation or use complies with the
7 authorization granted to the person or entity or with federal aviation
8 administration rules.

9 2. Prohibit a city, town or county from enacting or adopting
10 ordinances or rules on the operation or use of a public unmanned aircraft
11 that is owned by the city, town or county.

12 3. Prohibit a city, town or county from enacting or adopting
13 ordinances or rules that regulate the takeoff or landing of a model
14 aircraft in a park or preserve owned by the city, town or county if:

15 (a) There are other parks or preserves that are within the city,
16 town or county and that are available for model aircraft operation.

17 (b) The city, town or county only has one park or preserve that is
18 within the city, town or county.

19 4. Apply to the operation of an unmanned aircraft, including a
20 public unmanned aircraft, by a first responder as defined in section
21 36-661 while acting in the first responder's official capacity or an
22 emergency worker while engaged in or supporting authorized emergency
23 management activities or performing emergency functions pursuant to title
24 26, chapter 2.

25 ~~F.~~ F. A violation of subsection B of this section is a class 6
26 felony, except that a second or subsequent violation is a class 5 felony.
27 A violation of subsection A OR ~~[D]~~ [C] of this section is a class 1
28 misdemeanor.

29 ~~F.~~ G. For the purposes of this section:

30 1. "Civil unmanned aircraft" means an unmanned aircraft or unmanned
31 aircraft system that is operated by a person for any purpose other than
32 strictly for hobby or recreational purposes, including commercial
33 purposes, or in furtherance of or incidental to any business or media
34 service or agency.

35 2. "Commercial purposes" means the use of an unmanned aircraft in
36 return for financial compensation and includes aerial photography, aerial
37 mapping or geospatial imaging.

38 3. "Critical facility" means any of the following:

39 (a) A petroleum or alumina refinery.

40 (b) A petroleum, chemical or rubber production, transportation,
41 storage or processing facility.

42 (c) A chemical manufacturing facility.

43 (d) A water or wastewater treatment facility and water development,
44 distribution or conveyance system, including a dam.

45 (e) An electric generation facility, as defined in section
46 42-14156, and any associated substation or switchyard.

47 (f) An electrical transmission or distribution substation.

- 1 (g) An electrical transmission line of at least sixty-nine thousand
2 volts.
- 3 (h) An electronic communication station or tower.
- 4 (i) An energy control center.
- 5 (j) A distribution operating center.
- 6 (k) A facility that transfers or distributes natural gas, including
7 a compressor station, regulator station, city gate station or pressure
8 limiting station or a liquefied natural gas facility or supplier tap
9 facility.
- 10 (l) Any railroad infrastructure or facility.
- 11 (m) A federal, state, county or municipal court.
- 12 (n) A public safety or emergency operation facility.
- 13 (o) A federal, state, county or municipal jail or prison or other
14 facility in which persons are incarcerated.
- 15 (p) A federal or state military installation or facility.
- 16 (q) A hospital that receives air ambulance services.
- 17 4. "Model aircraft" ~~has the same meaning prescribed in section 336~~
18 ~~of the FAA modernization and reform act of 2012 (P.L. 112-95), as amended~~
19 MEANS AN UNMANNED AIRCRAFT THAT IS:
- 20 (a) CAPABLE OF SUSTAINED FLIGHT IN THE ATMOSPHERE.
- 21 (b) FLOWN WITHIN THE VISUAL LINE OF SIGHT OF THE PERSON OPERATING
22 THE MODEL AIRCRAFT.
- 23 (c) FLOWN FOR HOBBY OR RECREATIONAL PURPOSES.
- 24 5. "Person" means a corporation, firm, partnership, association,
25 individual or organization or any other group acting as a unit.
- 26 6. "Public unmanned aircraft" means an unmanned aircraft or
27 unmanned aircraft system that is operated by a public agency for a
28 government-related purpose.
- 29 7. "Unmanned aircraft" means an aircraft, including an aircraft
30 commonly known as a drone, that is operated without the possibility of
31 direct human intervention from within or on the aircraft.
- 32 8. "Unmanned aircraft system" means an unmanned aircraft and
33 associated elements, including any communication links and components that
34 control the unmanned aircraft.
- 35 Enroll and engross to conform
- 36 Amend title to conform

J.D. MESNARD

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